

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3239

By: Hasenbeck of the House

and

7 **Murdock** of the Senate

8
9
10 COMMITTEE SUBSTITUTE

11 An Act relating to professions and occupations;
12 amending 59 O.S. 2021, Section 698.2, which relates
13 to veterinary profession definitions; modifying
14 certain definitions; providing for new definitions;
15 and providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 59 O.S. 2021, Section 698.2, is
18 amended to read as follows:

19 Section 698.2. As used in the Oklahoma Veterinary Practice
20 Act:

21 1. "Board" means the State Board of Veterinary Medical
22 Examiners;
23
24

1 2. "Animal" means any animal other than humans and includes,
2 but is not limited to, fowl, fish, birds and reptiles, wild or
3 domestic, living or dead;

4 3. "Veterinarian" means a person who has received a degree in
5 veterinary medicine or its equivalent from a school of veterinary
6 medicine;

7 4. "Licensed veterinarian" means any veterinarian who holds an
8 active license to practice veterinary medicine in this state;

9 5. "School of veterinary medicine" means any veterinary college
10 or division of a university or college that offers the degree of
11 doctor of veterinary medicine or its equivalent, which conforms to
12 the standards required for accreditation by the American Veterinary
13 Medical Association (AVMA) and which is recognized and approved by
14 the Board;

15 6. "Veterinary technician" means a person who has graduated
16 from a program accredited by the American Veterinary Medical
17 Association, or its equivalent which is recognized and approved by
18 the Board, and who has passed the examination requirements set forth
19 by the Board, and is certified to practice under the direct
20 supervision of a licensed veterinarian. For the purpose of the
21 Oklahoma Veterinary Practice Act, "registered veterinary technician
22 (RVT)" will be used interchangeably with veterinary technician who
23 is certified pursuant to Sections 698.21 through 698.26 of this
24 title;

1 7. "Veterinary technologist" means a person who has
2 successfully graduated from an AVMA-accredited bachelor degree
3 program of veterinary technology, or its AVMA equivalent;

4 8. "Veterinary assistant" means an individual who may perform
5 the duties of a veterinary technician or veterinary technologist;
6 however, has not graduated from an AVMA-accredited technology
7 program or its equivalent, and has not been certified by the Board;

8 9. "Veterinary technology" means the science and art of
9 providing all aspects of professional medical care, services and
10 treatment for animals with the exception of diagnosis, prognosis,
11 surgery and prescription of any treatments, drugs, medications or
12 appliances, where a valid veterinarian-client-patient relationship
13 exists;

14 10. "Direct supervision" means:

- 15 a. directions have been given to a veterinary technician,
16 nurse, laboratory technician, intern, veterinary
17 assistant or other employee for medical care following
18 the examination of an animal by the licensed
19 veterinarian responsible for the professional care of
20 the animal, or
21 b. that, under certain circumstances following the
22 examination of an animal by a licensed veterinarian
23 responsible for the professional care of the animal,
24 the presence of the licensed veterinarian on the

1 premises in an animal hospital setting or in the same
2 general area in a range setting is required after
3 directions have been given to a veterinarian who has a
4 certificate issued pursuant to Section 698.8 of this
5 title;

6 11. "License" means authorization to practice veterinary
7 medicine granted by the Board to an individual found by the Board to
8 meet certain requirements pursuant to the Oklahoma Veterinary
9 Practice Act or any other applicable statutes;

10 12. "Supervised Doctor of Veterinary Medicine Certificate"
11 means authorization to practice veterinary medicine with certain
12 limitations or restrictions on that practice, set by the Board or
13 authorization to perform certain enumerated functions peripheral to
14 the practice of veterinary medicine as set by the Board and has a
15 certificate issued pursuant to Section 698.8 of this title;

16 13. "Veterinarian-client-patient relationship" means when:

- 17 a. the licensed veterinarian has assumed the
18 responsibility for making medical judgments regarding
19 the health of an animal or animals and the need for
20 medical treatment, and the client, owner or other
21 caretaker has agreed to follow the instructions of the
22 licensed veterinarian, and
23 b. there is sufficient knowledge of the animal or animals
24 by the licensed veterinarian to initiate at least a

1 general or preliminary diagnosis of the medical
2 condition of the animal or animals in that:

3 (1) the licensed veterinarian has recently seen or is
4 personally acquainted with the keeping and care
5 of the animal or animals, or

6 (2) the licensed veterinarian has made medically
7 necessary and timely visits to the premises where
8 the animal or groups of animals are ~~kept or both~~
9 maintained and created a herd health plan with
10 the client within the last twelve (12) months,
11 and

12 c. the licensed veterinarian is readily available for
13 follow-up in case of adverse reactions or failure of
14 the regimen of therapy, or has arranged for emergency
15 medical coverage, and

16 d. the licensed veterinarian's actions would conform to
17 applicable federal law and regulations;

18 14. "Veterinary premises" means any facility where the practice
19 of veterinary medicine occurs including, but not limited to, a
20 mobile unit, mobile clinic, outpatient clinic, satellite clinic,
21 public service outreach of a veterinary facility or veterinary
22 hospital or clinic. The term "veterinary premises" shall not
23 include the premises of a client of a licensed veterinarian or
24 research facility;

1 15. "Veterinary prescription drugs" means such prescription
2 items as are in the possession of a person regularly and lawfully
3 engaged in the manufacture, transportation, storage or wholesale or
4 retail distribution of veterinary drugs and the federal Food and
5 Drug Administration-approved human drugs for animals which because
6 of their toxicity or other potential for harmful effects, or method
7 of use, or the collateral measures necessary for use, are labeled by
8 the manufacturer or distributor in compliance with federal law and
9 regulations to be sold only to or on the prescription order or under
10 the supervision of a licensed veterinarian for use in the course of
11 professional practice. Veterinary prescription drugs shall not
12 include over-the-counter products for which adequate directions for
13 lay use can be written;

14 16. "ECFVG certificate" means a certificate issued by the
15 American Veterinary Medical Association Education Commission for
16 Foreign Veterinary Graduates, indicating that the holder has
17 demonstrated knowledge and skill equivalent to that possessed by a
18 graduate of an accredited or approved college of veterinary
19 medicine;

20 17. "Executive Director" means the Executive Director of the
21 State Board of Veterinary Medical Examiners or the authorized
22 representative of such official;

23 18. "Telemedicine" or "telehealth" means the practice of
24 veterinary medicine including diagnosis, consultation, evaluation,

1 treatment, transfer of medical data or exchange of information by
2 means of a two-way, real-time interactive communication between a
3 client or patient and a veterinarian with access to and reviewing
4 the patient's relevant information prior to the telemedicine visit.
5 Telemedicine or telehealth shall not include consultations provided
6 by telephone audio-only communication. A veterinarian using
7 telehealth technologies shall take appropriate steps to establish
8 the veterinarian-client-patient relationship by an in-person
9 examination within the last twelve (12) months and conduct all
10 appropriate evaluations and history of the patient consistent with
11 traditional standards of care for the particular patient
12 presentation. A veterinarian shall be licensed, or under the
13 jurisdiction of, the veterinary board of the jurisdiction where the
14 patient is located. The practice of medicine occurs where the
15 patient is located at the time telehealth technologies are used and
16 the relationship may not be established solely by telephone or
17 electronic means;

18 19. "Person" means any individual, firm, partnership,
19 association, joint venture, cooperative, corporation or any other
20 group or combination acting in concert, and whether or not acting as
21 a principal, trustee, fiduciary, receiver or as any other kind of
22 legal or personal representative, or as the successor in interest,
23 assignee, agent, factor, servant, employee, director, officer,
24

1 fictitious name certificate or any other representative of such
2 person;

3 20. "Food animal" means any mammalian, poultry, fowl, fish or
4 other animal that is raised primarily for human food consumption;

5 21. "Surgery" means the branch of veterinary science conducted
6 under elective or emergency circumstances, which treats diseases,
7 injuries and deformities by manual or operative methods including,
8 but not limited to, cosmetic, reconstructive, ophthalmic,
9 orthopedic, vascular, thoracic and obstetric procedures. The
10 provisions in Section 698.12 of this title shall not be construed as
11 surgery;

12 22. "Abandonment" means to forsake entirely or to neglect or
13 refuse to provide or perform the legal obligations for care and
14 support of an animal by its owner, or the owner's agent.
15 Abandonment shall constitute the relinquishment of all rights and
16 claims by the owner to an animal;

17 23. "Animal chiropractic diagnosis and treatment" means
18 treatment that includes vertebral subluxation complex (VSC) and
19 spinal manipulation of nonhuman vertebrates. The term "animal
20 chiropractic diagnosis and treatment" shall not be construed to
21 allow the:

- 22 a. use of x-rays,
- 23 b. performing of surgery,
- 24 c. dispensing or administering of medications, or

1 d. performance of traditional veterinary care;

2 24. "Animal euthanasia technician" means an employee of a law
3 enforcement agency, an animal control agency or animal shelter that
4 is recognized and approved by the Board, who is certified by the
5 Board and trained to administer sodium pentobarbital to euthanize
6 injured, sick, homeless or unwanted domestic pets and other animals;

7 25. "Teeth floating", as provided by a nonveterinary equine
8 dental care provider, means the removal of enamel points and the
9 smoothing, contouring and leveling of dental arcades and incisors of
10 equine and other farm animals. It shall not include dental
11 procedures on canines and felines;

12 26. "Nonveterinary reproductive services" means nonveterinary
13 services provided by an individual certified by the Board as a
14 nonveterinary reproductive services technician, and involves and
15 shall be limited to nonsurgical embryo transfer in ruminating
16 animals including cattle, sheep, goats, farmed deer and other
17 ruminating exotic animals such as those found in zoos, and may
18 include basic ultrasonography of their ovaries to evaluate the
19 response to embryo-transfer-associated procedures and of the uterus
20 to determine pregnancy by the detection of a heartbeat within the
21 transferred embryo at or greater than twenty-eight (28) days of
22 gestation of such ruminating animals;

23 27. "Embryo transfer" means the biosecure process of inducing
24 increased ovulations within a donor female for the in vivo

1 production of embryos, the flushing of those embryos, collecting,
2 grading and transferring of those embryos to recipient females or
3 the cryopreservation of those embryos for storage and later transfer
4 to recipient females;

5 28. "Animal Technology Advisory Committee" means the advisory
6 committee established by the Board pursuant to Section 698.30b of
7 this title to advise and make recommendations to the Board regarding
8 any new and evolving technology, procedure, method or practice that
9 may be considered or otherwise designated as an act of animal
10 husbandry that should be included as an act not prohibited in
11 paragraph 1 of Section 698.12 of the Oklahoma Veterinary Practice
12 Act. Reference to the advisory committee in this act shall mean the
13 Animal Technology Advisory Committee;

14 29. "Examination Committee" means the committee established and
15 described in subsection D of Section 698.30a of this title related
16 to nonveterinary reproductive services; ~~and~~

17 30. "Probable Cause Committee" means the committee consisting
18 of the Board's secretary or treasurer, investigator and attorney to
19 negotiate and settle disputes in accordance with the Oklahoma
20 Veterinary Practice Act;

21 31. "Medical records" means any form of documentation that
22 provides a current and accurate account of a patient or herd history
23 and relevant medical information. Each licensed veterinarian
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engaged in the practice shall maintain a complete, legible, written
or computer-generated record concerning the patient and/or herd;

32. "Relief veterinarian" means a licensed veterinarian who
works on a temporary or contract basis, who performs the duties of a
full-time veterinarian. He or she is required to maintain accurate
medical records that allow another veterinarian to proceed with care
and treatment and promote continuity of care for the animal; and

33. "Herd health plan" means a documented plan provided by a
licensed veterinarian with a veterinarian-client-patient
relationship that establishes the treatment and supportive care for
a group of animals to enhance a good herd management and optimize
animal health and productivity.

SECTION 2. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
OVERSIGHT, dated 03/02/2026 - DO PASS, As Amended and Coauthored.